

will not require supplemental responses.

Request for Admission No. 77

This Request seeks Defendant's admission that Plaintiff was not considered for a specific Staff Nurse II – Emergency Department role. TPMG's initial response admitted that she applied after the application period. The supplemental response is a straight denial. Plaintiff, without citation states, "A party may not serve a supplemental response that withdraws a prior admission without explanation." Plaintiff requests that TPMG either explain the denial or restore the admission. The Court, however, sees the two responses as the same. TPMG's original "admission" was not an admission of the requested fact, and the denial is substantively similar. The Court will not order any supplemental response.

Qualified admissions

Plaintiff argues that TPMG's answers to Request Nos. 41, 42, 46, 50, 51, 55, 59, 60, 64, 68, 69, 73 fail to answer the Request properly. TPMG notes that its answers provide explanation. Both parties are correct. TPMG must amend to actually admit or deny the question as phrased. Further context can be added either in the Requests or through other forms of discovery.

Timing

All amended responses ordered by the Court must be provided within 30 calendar days of this order.

Sanctions

Plaintiff requests \$4,785 in sanctions. Defendant argues that the supplemental responses mooted the motion. California Rule of Court 3.1348(a) provides: "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed." After a thorough analysis of the original requests, the supplemental responses (and the timing of those responses), and both parties' arguments, and the scope of the meet and confer process, the Court will order \$500 in sanctions for this Motion, payable within 30 calendar days of this order.

**6. 9:00 AM CASE NUMBER: C23-02891**  
**CASE NAME: TAKENYA CLINTON VS. THE PERMANENTE MEDICAL GROUP**  
**\*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFF'S FORM**  
**INTERROGATORIES, SET ONE**  
**FILED BY: CLINTON, TAKENYA B.**  
**\*TENTATIVE RULING:\***

Plaintiff Takenya Clinton brings this Motion to Compel Further Responses to Plaintiff's Form Interrogatories – Set One. On June 17, 2026, one day before filing its opposition to the Motion, Defendant The Permanente Medical Group (TPMG) filed supplemental responses.

Although the parties dispute the full impact of TPMG's supplemental responses, it does appear that the supplements have narrowed the dispute. The Court understands that any requests addressed in

Plaintiff's opening brief that are not addressed (either specifically or by category) in Plaintiff's reply brief are no longer in dispute.

TPMG argues that, to the extent its supplemental responses answer Plaintiff's concerns, the Motion is Moot. Plaintiff maintains several concerns.

Form Interrogatory No. 215.1

This Interrogatory seeks information relating to individuals interviewed concerning Plaintiff's alleged adverse employment action. Plaintiff argues that TPMG's supplemental response is inadequate because it states that there was no investigation, contradicting TPMG's opposition papers—which say that names have been provided—and response to Form Interrogatory No. 207.2, which lists investigators. Plaintiff is correct in this assessment. The Court suspects that Defendant's supplemental response is in error, given Defendant's other filings, including the Response to Plaintiff's Separate Statement. The Court orders that this response be reviewed and amended to be accurate.

Form Interrogatory No. 12.1

This interrogatory seeks contact information for percipient witnesses. Defendant has instructed that all identified responsive individuals may be contacted through counsel except former employee Donovan Taylor, but it fail to give his contact information and does not explain any reason for omission. Defendant must provide any known contact information for Donovan Taylor.

Form Interrogatory No. 12.2

This Interrogatory, like Form Interrogatory No. 215.2, seeks information relating to individuals interviewed concerning this case. Defendant rightfully noted that this interrogatory is duplicative, but strangely gave a different response. Plaintiff complains that instead of giving substantive information and names of witnesses regarding its November 28, 2023 investigation, TPMG referred to “over 100 pages of document production.” Plaintiff claims that Code of Civil Procedure section 2030.230 is not satisfied by reference to over 100 pages. The Court disagrees. 100 pages is not a substantial number of pages for review. Plaintiff, however, also argues that those pages do not contain addresses or phone numbers of the individuals interviewed. Defendant must provide such information, if known.

Form Interrogatory No. 201.7

This interrogatory seeks the contact information for individuals selected for positions for which Plaintiff was not selected. It also seeks the reasons those individuals were selected over Plaintiff. TPMG has supplemented its original response with the date of selection and the reasons, but it did not give the contact information. TPMG defends such withholding because those individuals are unlikely to have the reason for their selection over Plaintiff and also to protect the privacy of those individuals. Given that TPMG has responded that Plaintiff failed to meet the minimum qualifications for those positions, the Court finds that TPMG's reasons for withholding contact information outweigh Plaintiff's interest in this information. Had she met minimum qualifications, the analysis may have been different.

Form Interrogatory No. 217.1

Plaintiff complains that TPMG identified supporting documents by Bates numbers but documents contain no Bates numbers. If this is accurate, TPMG must produce the documents as intended—with the Bates numbers that the Court assumes were inadvertently omitted.

Form Interrogatory No. 209.2

Although Plaintiff initially sought a wider range of employee complaints, it appears that Plaintiff agrees that a narrowing of the scope of inquiry is appropriate here. Plaintiff argues that TPMG has nevertheless improperly narrowed that inquiry from “same or similar” claims involving the same “decisionmakers and investigators” to “same” claims involving the “same decisionmakers.” If Plaintiff seeks additional searches, it must provide some specificity so that TPMG may make appropriate and accurate inquiries as to “similar claims.” Once that clarification is provided, TPMG must provide supplemental responses relating to the same decisionmakers and investigators.

Timing

All amended responses ordered by the Court must be provided within 30 calendar days of this order.

Sanctions

Plaintiff requests \$4,785 in sanctions. Defendant argues that the supplemental responses mooted the motion. California Rule of Court 3.1348(a) provides: “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed.” After a thorough analysis of the original requests, the supplemental responses (and the timing of those responses), and both parties’ arguments, and the scope of the meet and confer process, the Court will order \$500 in sanctions for this Motion, payable within 30 calendar days of this order.

**7. 9:00 AM CASE NUMBER: C23-02891**

**CASE NAME: TAKENYA CLINTON VS. THE PERMANENTE MEDICAL GROUP**

**\*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUESTS FOR PRODUCTION OF DOCUMENTS**

**FILED BY: CLINTON, TAKENYA B.**

**\*TENTATIVE RULING:\***

Plaintiff Takenya Clinton brings this Motion to Compel Further Responses to Plaintiff’s Requests for Production of Documents – Set One. On June 17, 2026, one day before filing its opposition to the Motion, Defendant The Permanente Medical Group (TPMG) filed supplemental responses.

Although the parties dispute the full impact of TPMG’s supplemental responses, it does appear that the supplements have narrowed the dispute. The Court understands that any requests addressed in Plaintiff’s opening brief that are not addressed (either specifically or by category) in Plaintiff’s reply brief are no longer in dispute.

Request for Production of Documents Nos. 80-109, 277, 278, 282